

Recorded Instrument (Specimen)

Utility Easement Agreement

County/State: Maricopa County, Arizona

Instrument No.: 2012-001234 Record Date: 2012-02-14

Grantor: Juniper Retail Owner LP

Grantee: City Utilities Dept.

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1. Grant of Easement

Grantor hereby grants to Grantee a perpetual, non-exclusive easement for the installation, operation, repair, replacement, and maintenance of utility facilities (the "Utility Easement").

2. Easement Area

The easement area is a strip of land twenty feet (20') in width along the north 20 feet of the Tract (the "Easement Area"), together with a right of ingress and egress for access thereto.

3. Rights and Restrictions

No buildings or permanent structures shall be erected within the Easement Area. Landscaping is permitted provided it does not interfere with utility facilities.

4. Miscellaneous

This instrument shall run with the land and be binding upon successors and assigns.